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CASE #	**CASE NAME**	**HEARING NAME**
CVME2513565	JAFARI VS CILING	MOTION TO AUTHENTICATE JUDGMENT LIEN FILINGS AND COMPEL ENFORCEMENT ACCOUNTING BY SAMMY CILING

Tentative Ruling: The Court **DENIES** Defendants' Motion to Authenticate Judgment Lien Filings, Compel Enforcement Accounting, and for Related Disclosure of Enforcement Instruments the Motion.

Plaintiff brings this creditor's suit to enforce a judgment entered on April 13, 2021 in favor of Plaintiff and against Sammy Ciling and Anke Ciling in a Los Angeles Superior Court matter for, among other things, breach of fiduciary duty, fraud, conversion, and identity theft. That judgment (hereafter "the LA Judgment") is now more than $4.2 million. In enforcing the LA Judgment, Plaintiff has recovered two parcels of property with a court determined value of $950,000 and less than $5000 in cash. In this lawsuit, Plaintiff contends Sammy Ciling ("Sam") and Anke Ciling ("Anke") have attempted to hide assets by transferring things of value to their children – Hunter Ciling, Nicolas Ciling, and Tristine Ciling. Plaintiff's complaint asserts the following causes of action: (1) creditors suit against US Capital, Inc. Hunter Ciling, Nicolas Ciling, and Tristine Ciling; (2) creditor's suit against San Diego County Credit Union; (3) conspiracy to engage in fraudulent conveyance against Hunter Ciling, Nicolas Ciling, and Tristine Ciling; (4) civil conspiracy to defraud and obstruct enforcement of judgment against Sam Ciling, Anke Ciling, Hunter Ciling, Nicolas Ciling, and Tristine Ciling; and (5) aiding and abetting fraud against Hunter Ciling, Nicolas Ciling, and Tristine Ciling.

Sam Ciling ("Sam") and Anke Ciling ("Anke") bring this motion. They ask for an order requiring Plaintiff to identify and authenticate each judgment lien, UCC filing, abstract, notice, or other enforcement filed, recorded, or asserted against them. They also ask for order requiring certain information to be provided regarding the aforementioned documents; Plaintiff to identify all credits/amounts recovered; an accounting by Plaintiff; Plaintiff to identify the factual and legal basis for any claimed balance exceeding the original judgment amount; and the production of records to verify the amounts being asserted in support of the ongoing enforcement efforts.

In opposition, Plaintiff contends that Sam and Anke fail to identify any authority that allows them the relief they seek. He argues that an accounting cannot be sought via a motion and should be sought through a cause of action. It asserts that Sam and Anke are not entitled to an accounting.

In reply, Sam and Anke assert that they are entitled to an accounting. They argue that Plaintiff is relying on unsupported accusations. They argue that evidence supports the need for an accounting.

ANALYSIS

This is Sam and Anke's second motion seeking an accounting. The first motion sought an accounting due to Plaintiff's court order control over Sam and Anke's businesses, financial systems, accounts receivable, and physical facilities. (Defendants Sammy Ciling and Anke Ciling's Motion for Verified Accounting, Limitation of Enforcement, and Related Relief, 2:5-3:18,) This motion seeks an accounting regarding the amount that Plaintiff contends is currently owed. (Motion to Authenticate Judgment Lien Filings and Compel Enforcements Accounting, and for Related Disclosure of Enforcement Instruments, 2:3-16.) Due to this, it does not appear that this motion is a motion for reconsideration under CCP § 1008. However, the Court's reasoning regarding the request for accounting in Sam and Anke's first motion applies.

An accounting is an equitable remedy that can be asserted in an independent lawsuit, not in a motion. (*St. James Church of Christ Holiness v. Superior Court of Los Angeles County* (1955) 135 Cal.App.2d 352, 359.) Accounting is not a discovery shortcut or the right to obtain a stay of judgment enforcement without posting a bond. "[T]he nature of a cause of action in accounting is unique in that it is a means of discovery. An accounting is a 'species of disclosure, predicated upon the plaintiff's legal inability to determine how much money, if any, is due.' Thus, the purpose of the accounting is, in part, to discover what, if any, sums are owed to the plaintiff, and an accounting may be used as a discovery device." (*See Teselle v. McLoughlin* (2009) 173 Cal. App. 4th 156, 180.) Accounting is proper only where the facts show a relationship and transactions that make such relief appropriate; it is not available on speculation or as a means to force the opposing party to disprove imaginary credits. (*Id*. at 179.) Here, Sam and Anke have failed to show that an accounting is allowed outside a cause of action. Additionally, they have not shown they are entitled to an accounting. While they have shown that there are five notices of judgment liens filed with the California Secretary of State that identify different judgment debtors and some of them have different amounts required to satisfy the judgment, they fail to provide any evidence that they are unclear of the amount of funds collected from them to satisfy the debt owed. The filing of judgment liens does not mean that any funds have been collected.

Sam and Anke also fail to establish entitlement to the other relief sought in this motion – information regarding judgment liens, UCC filing, abstract, notice, or other enforcement filed, recorded, or asserted against them; the identification of all credits/amounts recovered; the factual and legal basis for any claimed balance exceeding the original judgment amount; and the production of records to verify the amounts being asserted in support of the ongoing enforcement efforts. They cite to no statutory provisions or case law that allow the relief sought simply by bringing a motion.